

Neelam Tailor vs Shri Nitin Verma on 18 October, 2023

Author: Madan Gopal Vyas

Bench: Madan Gopal Vyas

[2023:RJ-JD:35691]

HIGH COURT OF JUDICATURE FOR RAJASTHAN AT
JODHPUR
S.B. Civil Transfer Appl. No. 185/2023

Neelam Tailor W/o Shri Nitin Verma, Aged About 35 Years, D/o
Shri Vijay Kumar Chaparwal, R/o Near Poltury Farm Village-
Hurda, Gulabpura, District Bhilwara (Raj.).

----Petitioner

Versus

Shri Nitin Verma S/o Shri Mukesh Verma, Aged About 38 Years,
R/o 552-2, Dayanand Colony, Ramnagar, Pushkar Road, District
Ajmer (Raj.). Pin Code 305001.

----Respondent

For Petitioner(s)	:	Mr. Ravi Bhansali, Sr. Advocate Assistant by Mr. Shubham Modi
For Respondent(s)	:	Mr. NL Joshi Mr. Kirti Joshi

HON'BLE MR. JUSTICE MADAN GOPAL VYAS

Judgment DATE OF JUDGMENT 18/10/2023 The present transfer petition under Section 24 of CPC has been preferred by the petitioner-wife for transferring the case No. 206/2020 preferred by the respondent herein under Section 13 of the Hindu Marriage Act 1955, from Family Court No.2, Ajmer to the court of Adl. District & Sessions Judge, Gulabpura, District Bhilwara.

2. Learned counsel for the petitioner submits that the petitioner has already filed an application under Section 125 of Cr.P.C. against the respondent before the court of ACJM, Gulabpura, District Bhilwara. He further submits that an FIR for the offence under Section 498A and 406 of the IPC has been filed by the petitioner against the respondent wherein challan has already [2023:RJ-JD:35691] (2 of 5) [CTA-185/2023] been filed and the matter is pending before the competent Court at Gulabpura. It is further submitted that in the year 2019, an application under Section 9 of the Hindu Marriage Act has already been filed by the petitioner against the respondent. The respondent filed the application under Section 13 of the Hindu Marriage Act before Family Court No.2, Ajmer only in order to harass and humiliate the petitioner and the petitioner being lady having no source of income is unable to defend her case at Ajmer. It is further submitted that the application under Section 9 of the Hindu Marriage Act as well as the application under Section 13 of the Hindu

Marriage Act can be decided by the same court, therefore, the application under Section 13 of the Hindu Marriage Act may be transferred to the court of Addl. District & Sessions Judge, Gulabpura, District Bhilwara. In support of his contentions, learned counsel for the petitioner relied upon the judgment of the Hon'ble Supreme Court delivered in the case of Ajay Lawania Vs. Shobhna Dubey (2010) 15 SCC 354.

3. Learned counsel appearing for respondent opposed the prayer made by the learned counsel for the petitioner. It is submitted that the present transfer petition is not maintainable before this Court as the petitioner sought transfer of application under Section 13 of the Hindu Marriage Act, which is pending consideration before the Family Court No.2, Ajmer and the territorial jurisdiction of the Family Court No.2, Ajmer is with the Jaipur Bench of this Court. Further, it is submitted that on several dates, the petitioner has already appeared in the case and now the application is pending at the stage of evidence. Learned counsel for the respondent submits that the petitioner is highly [2023:RJ-JD:35691] (3 of 5) [CTA-185/2023] educated lady having degree of M.Tech and can attend the proceedings at Ajmer and the respondent is ready and willing to bear her expenses for attending the court proceedings at Ajmer. In support of his arguments, learned counsel for the respondent relied upon following judgmentsL (1) Anindita Das Vs. Srijit Das: Transfer Petition (Civil) No.191/2005, decided on 29.8.2005 (2) Neelam Bhatia Vs. Satbir Singh Bhatia : Transfer Petition (Civil) No.357/2004, decided on 30.8.2004 (3) Preeti Sharma Vs. Manjit Sharma : Transfer Petition (Civil) No.117-118/2004, decided on 29.4.2005 (4) Rajasthan High Court Advocates Association Vs. Union of India & Ors, reported in (2001) AIR (SCW) 1 (5) Neelam Vs. Dinkar Jangir (SB Civil Transfer Petition No.139/2016), decided on 21.2.2017 (6) Smt. Payal Vs. Rana Ram (SB Civil Transfer Petition No.3/2015), decided on 19.5.2015 (7) Krishina Veni Nagam Vs. Harish Nagam reported in AIR 2017 SC 1345

4. With respect to the preliminary objection of territorial jurisdiction of this Court raised by the learned counsel for the respondent, learned counsel for the petitioner submits that in matrimonial matters the parties to the lis have right to seek transfer of the case and this Court is having jurisdiction to transfer the case in accordance with the provisions Section 24 of the Civil Procedure Code. Learned counsel for the petitioner further submits that the Hon'ble Supreme Court in the case of Vinisha Jitesh Tolani @ Manmeet Laghmani vs Jitesh Kishore Tolani 2010(1) WLC (SC) 705 has observed that in the matrimonial proceedings initiated by the husband against the wife, the convenience of the wife has to be considered for contesting the [2023:RJ-JD:35691] (4 of 5) [CTA-185/2023] suit, and accordingly the matrimonial proceedings ought to be transferred where the wife is residing. It is further submitted that the District Ajmer as well as Gulabpura, District Bhilwara obviously falls in the State of Rajasthan. The court of Addl. District & Sessions Judge, Gulabpura, District, Bhilwara comes in the territorial jurisdiction of this Court, therefore, this Court may order for transferring the application under Section 13 of the Hindu Marriage Act from Family Court No.2, Ajmer to the court of Addl. District & Sessions Judge, Gulabpura, District, Bhilwara. In support of his contentions, learned counsel relied upon the judgments of this Court delivered in the case of Smt. Tilak Shekhawat Vs. Karan Singh Chouhan: SB Civil Transfer Petition No.23/2022, decided on 10.11.2022 and in the case of Shilpa Vs. Deepak Tiwari : SB Civil Transfer Petition no.133/2022, decided on 10.7.2023.

5. In Ajay Lawania Vs. Sbhobhna Dubey (supra), the Hon'ble Supreme Court held as under:

"4. It is well settled that if two petitions are filed under the Act, one under Section 9 and the other under Section 13, then in order to avoid conflicting decisions, it is expedient that both the cases are heard by the same court. Evidence in the two cases should be recorded one after the other, arguments should be heard separately and thereafter, separate judgments should be delivered on one day."

6. Having regard to the facts and circumstances of the case and the fact that the petitioner is a lady and the Hon'ble Supreme Court in the case of Vinisha Jitesh Tolani @ Manmeet Laghmani (supra) has held that in the matrimonial proceedings initiated by the husband against the wife, the convenience of the wife has to be considered for contesting the suit as well as in view of the fact [2023:RJ-JD:35691] (5 of 5) [CTA-185/2023] that the petitioner has already initiated proceedings against the respondent at Gulabpura, District Bhilwara and an application under Section 9 of the Hindu Marriage Act is pending in the Court of Addl. District Judge, Gulabpura, District Bhilwara, this Court deems it appropriate to transfer the petition under Section 13 of the Hindu Marriage Act from Family Court No.2, Ajmer to the court of Addl. District & Sessions Judge, Gulabpura, District Bhilwara

7. The transfer petition is allowed accordingly.

8. It is ordered that the Civil case No.206/2020 under Section 13 of the Hindu Marriage Act 1955, pending before the Family Court No.2, Ajmer be transferred to the court of Addl. District & Sessions Judge, Gulabpura, District Bhilwara

8. The learned Family Court No.2, Ajmer is directed to send the record of the case to the court of Addl. District & Sessions Judge, Gulabpura, District Bhilwara

9. Both the parties are directed to appear before Addl. District & Sessions Judge, Gulabpura, District Bhilwara on 6.11.2023

10. Learned Addl. District & Sessions Judge, Gulabpura, District Bhilwara is directed to expedite the trial of the case.

(MADAN GOPAL VYAS),J 198-CPGoyal/-

Powered by TCPDF (www.tcpdf.org)